



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8751 (EXTENSION)
ORIGINAL March 16, 1982

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8751 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

801 *J. Suzanne Hodgepeth*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 19 1991
(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Delta Tech Service, Inc.
Martinez, CA

January 2, 1991



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of Transportation

Research and
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Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8751

1. Delta Tech Service, Incorporated, Martinez, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to transport packages prescribed herein of certain hazardous materials described in paragraph 3 below in commerce subject to the requirements specified herein. This exemption authorizes use of a non-DOT specification cargo tank, and provides no relief from any regulation other than specifically stated.

2. BASIS. This exemption is based on Delta Tech Service Incorporated's application dated October 14, 1981 submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class).

a. The following corrosive materials for use in industrial cleaning and oil well acidizing operations only:

1. Uninhibited hydrochloric acid, and inhibited hydrochloric acid and acid mixtures (sludge acid and waste acid) not exceeding 36% strength.

2. Mixtures of inhibited acids provided the corrosive effect on steel of such mixtures is no greater than that of inhibited hydrochloric acid not exceeding 36% strength.

3. Certain alkaline liquids compatible with the packaging.

b. Liquid and semi-solid waste material, including mixtures, compatible with the packaging, containing flammable liquids or corrosives or poison B materials, or combinations thereof, classed as flammable liquid, corrosive material or poison B as appropriate.

4. PROPER SHIPPING NAME (49 CFR 172.101). Specific commodity name, or generic description, as appropriate. For waste materials, the description must be preceded by the word "Waste."

5. REGULATION AFFECTED. 49 CFR 173.119(a) and (m), 173.245(a), 173.263(a), 173.346(a), 178.340-7, 178.343-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is one non-DOT specification cargo tank designed and constructed in full compliance with DOT Specification MC-312 (49 CFR 178.340, 178.343) except as follows: No new construction is authorized.

a. The cargo tank must be designed, built and certified in accordance with Section VIII of the ASME Code to a minimum design pressure as follows:

Basic Cargo Tank Specification	Design Pressure (psig)	
	Internal (See Note 1)	External (See Note 2)
MC 312	25	15

Note 1: The design pressure must be at least equal to the maximum pressure used for unloading.

Note 2: Vacuum tanks must have an external design pressure of at least 15 psi.

b. Circumferential reinforcement must comply with 49 CFR 178.340-7 except the maximum unreinforced portion of the shell may exceed 60-inches provided thickness and tensile strength of the shell material in combination with the frame and circumferential reinforcement produces structural integrity at least equal to that prescribed in 49 CFR 178.340-4(b).

c. In place of internal valves prescribed in 49 CFR 178.343-5(b), each tank may be equipped with one 6-inch maximum diameter discharge outlet having a positive shut-off valve equipped with a blind flange, or a sealing cap or an additional shut-off valve to be in place and closed tight against leakage during transportation. No part of this valve or its associated piping, shall extend beyond the vehicle frame or vertically below the bottom of the frame. The blind flange, sealing cap or additional valve must be at least 6 inches inside the bumper protection.

d. The metal identification plate and the manufacturer's certificate must not be marked to indicate compliance with DOT MC-312 specifications but instead must bear reference to DOT-E 8751.

e. Tanks that are to be used in transporting flammable materials must be equipped with a spring loaded relief valve.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle and cargo vessel used to transport packages covered by this exemption.

b. Each cargo tank must be reinspected and retested once every year in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC 312 cargo tanks, as appropriate, at one and one-

half times the sum of the design pressure plus the static head. Reinspection must include ultrasonic thickness measurement. Any tank found to have corroded 1/6 of the tank wall thickness or 1/16 inch, whichever occurs first, must not be returned to service.

c. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8751."

d. The Manufacturer's Data Report for the first cargo tank fabricated must be submitted to the OHMR prior to initial shipment.

e. Cargo tanks complying with paragraph 7 above may be loaded with any waste material listed in paragraph 3 of the exemption. The hazardous materials described in subparagraph 3a must be shipped in lined tanks only. Flammable liquids must be transported in unlined tanks only. The other materials described in this paragraph may be transported in lined or unlined tanks.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the OHMR as soon as practicable.

10. EXPIRATION DATE. January 15, 1984.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

MAR 16 1982

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

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